



CHAPTER xxxiii.

An Act to confer further powers upon the Taff Vale Railway Company with reference to the construction of works and the acquisition of lands and for other purposes. A.D. 1912.
[7th August 1912.]

WHEREAS it is expedient that the Taff Vale Railway Company (in this Act called "the Company") should be empowered to construct the footbridge and works and to exercise the other powers in this Act mentioned and also to acquire retain hold and use lands for the purposes of this Act and for the general purposes of or connected with their undertaking:

And whereas plans and sections showing the lines and levels of the footbridge and works by this Act authorised and plans showing the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference to those plans containing the names of the owners and lessees or reputed lessees and of the occupiers of the said lands were duly deposited with the clerk of the peace for the county of Glamorgan and such plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference:

And whereas it is expedient that the agreements respectively set forth in the Second Third Fourth and Fifth Schedules to this Act should be confirmed:

And whereas it is expedient that powers should be conferred upon the Company and upon the Company and any other company jointly with respect to the sale lease or other disposal of lands acquired by or vested in the Company either solely or jointly with any such other company which are not or eventually

A.D. 1912. may not be required for the purposes for which they may have been so acquired:

And whereas it is expedient that the powers of the Company for the compulsory purchase of certain lands and for the construction and completion of certain railways which by the Acts hereinafter referred to in that behalf the Company were authorised to acquire and construct should be revived and extended as provided by this Act:

And whereas it is expedient that the Company should be empowered to issue as part of the Taff Vale Railway preference stock any unissued capital which the Company already have power to issue as preference stock and to apply their funds to the purposes of this Act and to the general purposes of their undertaking:

And whereas it is expedient that the other provisions contained in this Act should be made:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited for all purposes as the Taff Vale Railway Act 1912.

Incorporation of general Acts.

2. The following Acts and parts of Acts are (except where the same are inconsistent with or expressly varied by this Act) incorporated with and form part of this Act (that is to say):—

The Lands Clauses Acts:

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the construction of the railway and the works connected therewith and in the application of the said provisions for the purposes of this Act the foot-bridge shall be deemed to be a railway and the said provisions shall so far as the same are applicable be read and construed accordingly:

Part II. (relating to extension of time) of the Railways Clauses Act 1863.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And—

The expression "the council" means the Pontypridd Urban District Council;

The expression "the footbridge" means the footbridge approaches and works connected therewith by this Act authorised.

4. Subject to the provisions of this Act the Company may in the urban district of Pontypridd in the county of Glamorgan and in the lines shown upon the deposited plans and in accordance with the levels shown on the deposited sections make and maintain the footbridge and approaches hereinafter described with all proper steps works and conveniences connected therewith and may enter upon take and use such of the lands delineated on those plans and described in the deposited book of reference relating thereto as may be required for those purposes (that is to say):—

A footbridge with approaches thereto commencing by a junction with the road leading from Hafod to Pontypridd known as the Hafod Road at a point in that road 30 yards or thereabouts measured in an easterly direction from the point where the public right of way known as the Gyfeillon Footpath Level Crossing over the said branch railway crosses the Company's northern fence and terminating in the road leading from Porth to Pontypridd known as the Rhondda Road at the point where the said Gyfeillon footpath joins the said road;

and all rights of way over the Gyfeillon Footpath Level Crossing and the footpaths lying between the said Hafod Road and the said Rhondda Road and leading to and from the said level crossing shall by virtue of this Act be stopped up and extinguished:

Provided always that the said level crossing or footpaths shall not be stopped up until the footbridge is completed in accordance with the provisions of the agreement set forth in the Second Schedule to this Act.

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Confirming
agreement
as to Gy-
feillon foot-
bridge.

5. The agreement dated the fourth day of April one thousand nine hundred and twelve and made between the Company of the first part the Great Western Colliery Company Limited of the second part Henry Fairfield Grover of the third part and the council of the fourth part as set forth in the Second Schedule to this Act is hereby confirmed and made binding upon and shall be carried into effect by all the parties thereto.

As to ex-
penses of
council.

6.—(1) The council may in addition to any moneys now borrowed by them or which they are now authorised to borrow or which they may be authorised to borrow under the provisions of any public Act borrow at interest on the security of the district fund and general district rate of the urban district of Pontypridd any moneys which they are by this Act authorised to contribute towards the construction of the footbridge and the provisions of sections 236 to 239 of the Public Health Act 1875 shall be applicable to any mortgage granted by the council under this section Any moneys so borrowed shall be repaid by the council within thirty years from the date or dates of borrowing the same in accordance with the provisions of the Public Health Act 1875 as if the same were borrowed under that Act.

(2) Any expenses incurred by the council under the provisions of this Act of and incidental to the lighting of the footbridge shall be deemed to be expenses incurred by them under and for the purposes of the Public Health Acts and the council may include all such expenses in any precept or rate made to meet the expenses of the urban district of Pontypridd under the said Acts.

(3) In calculating the sum which the council may borrow under the Public Health Act 1875 or any other enactment any sums they may borrow or which are charged upon the district fund and general district rate under or by virtue of this Act shall not be reckoned.

Return
to Local
Government
Board as to
repayment
of debt.

7.—(1) The clerk of the council shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made

transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the said clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1912.

(2) If it appears to the Local Government Board by that return or otherwise that the council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

8. In constructing the footbridge the Company may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and may deviate vertically from the levels thereof as shown on the deposited sections to any extent not exceeding five feet. Power to deviate in construction of footbridge.

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Power to
Company to
acquire lands
for general
purposes.

9. Subject to the provisions of this Act the Company in addition to the other lands which they are by this Act authorised to acquire may enter upon take use and appropriate for the purposes of widening their railways and extending their stations sidings warehouses engine sheds workshops coal wharves depôts and other works and conveniences for the accommodation of their traffic and for providing accommodation for persons belonging to the working classes who may be displaced in executing the powers of this Act or any other Act relating to the Company and for other purposes connected with their undertaking all or any of the lands following delineated on the deposited plans thereof and described in the deposited book of reference relating thereto and situate in the county of Glamorgan and may hold and use for all or any of the purposes aforesaid such of those lands as have already been purchased and the same shall be deemed to be lands acquired under the powers of this Act (that is to say):—

Certain lands in the parish of Pontypridd in the urban district of Pontypridd lying on the south-west side of Tram Road and between Tram Road and the approach to the Company's passenger station at Pontypridd and also lying partly on the south-west side of the Prince of Wales public house Tram Road and partly between that public house and the electric cinema theatre known as the White Palace Pontypridd:

Certain lands in the parish and urban district of Aberdare lying on the western side of and adjoining the Company's Dare Valley Branch Railway between a point 90 yards or thereabouts measured along that branch railway in a northerly direction from the bridge carrying the public road known as Gadlys Road over that branch railway and a point 200 yards or thereabouts measured in a southerly direction along the said branch railway from the said bridge.

As to private
rights of
way over
lands taken
compulsorily.

10. All private rights of way over any lands which are under the powers of this Act authorised to be acquired compulsorily shall as from the date of their acquisition be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

11. The powers granted by this Act for the compulsory purchase of lands shall cease after the expiration of three years from the passing of this Act.

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Period for compulsory purchase of lands.

12. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

13. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners may be required to sell parts only of certain properties.

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter in this section included in the term "the owner" and the said properties are hereinafter in this section referred to as "the scheduled properties":

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company

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paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:

- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter in this section referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material

detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice: A.D. 1912.

- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

14. Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not be required to purchase or acquire any part of the lands within the limits of deviation shown on the said plans of the footbridge or to acquire any greater right or interest therein than the right to use the same for the purpose of constructing and maintaining the footbridge but the Company may purchase and acquire and the owners of and other persons interested in the said lands shall sell to the Company if required such right or easement as aforesaid. Power to acquire easements for footbridge.

15. Notwithstanding anything herein contained the Company shall not acquire or interfere with the aqueduct or bridge and line of water pipes constructed or about to be constructed by the Mountain Ash Urban District Council over and across For protection of Mountain Ash Urban District Council.

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the lands in the urban district of Aberdare in the county of Glamorgan numbered 1 and 2 on the deposited plans and in the book of reference and nothing herein contained shall prevent the said council from erecting maintaining and using such aqueduct bridge line of water pipes and incidental works in accordance with the plans and sections thereof annexed to an agreement dated the twenty-third day of November one thousand nine hundred and eleven made between the Company of the one part and the said council of the other part and upon the same terms and conditions as are provided in the said agreement.

Revival of powers for purchase of certain lands under Act of 1890.

16. The powers conferred upon the Company by the Taff Vale Railway Act 1890 (in this Act referred to as "the Act of 1890") as extended by the Taff Vale Railway Act 1909 (in this Act referred to as "the Act of 1909") for the compulsory purchase of so much of the lands required for the purposes of Railway No. 1 authorised by the Act of 1890 as is referred to in section 4 of the Taff Vale Railway Act 1907 are hereby revived and may be exercised by the Company during but not after a period of two years from the passing of this Act.

Further extension of time for construction of Railway No. 1 authorised by Act of 1890.

17. The time limited by the Act of 1890 as extended by the Act of 1909 for the construction and completion of the said Railway No. 1 is hereby further extended for a period of three years from the twenty-fifth day of July one thousand nine hundred and thirteen and sections 18 and 19 of the Act of 1890 shall be read and construed accordingly.

If the said railway be not completed within the said period of three years then on the expiration of that period the powers by the said Acts granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall be then completed.

Revival of powers for purchase of certain lands under Act of 1896.

18. The powers conferred upon the Company by the Taff Vale Railway Act 1896 (in this Act referred to as "the Act of 1896") as extended by the Act of 1909 for the compulsory purchase of so much of the lands required for the purposes of Railway No. 3 authorised by the Act of 1896 as is referred to in section 6 of the Taff Vale Railway Act 1907 are hereby revived and may be exercised by the Company during but not after a period of two years from the passing of this Act.

Further extension of time for

19. The time limited by the Act of 1896 as extended by the Act of 1909 for the construction and completion of the said

Railway No. 3 is hereby further extended for a period of three years from the seventh day of August one thousand nine hundred and thirteen and sections 11 and 12 of the Act of 1896 shall be read and construed accordingly.

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—
construction
of Railway
No. 3 autho-
rised by Act
of 1896.

If the said railway be not completed within the said period of three years then on the expiration of that period the powers by the said Acts granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall be then completed.

20. The powers conferred upon the Company by the Taff Vale Railway Act 1900 (in this Act referred to as "the Act of 1900") as extended by the Taff Vale Railway Act 1903 for the compulsory purchase of the lands required for the purposes of Railways Nos. 1 and 2 authorised by the Act of 1900 are hereby revived and may be exercised by the Company during but not after a period of two years from the passing of this Act.

Revival of
powers for
purchase of
certain lands
under Act
of 1900.

21. The time limited by the Act of 1900 as extended by the Act of 1909 for the construction and completion of the said Railways Nos. 1 and 2 is hereby further extended for a period of three years from the tenth day of July one thousand nine hundred and fourteen and sections 8 and 9 of the Act of 1900 shall be read and construed accordingly.

Further
extension
of time for
construction
of Railways
Nos. 1 and 2
authorised
by Act of
1900.

If the said railways be not completed within the said period the powers by the said Acts granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall be then completed.

22. The agreement dated the thirtieth day of May one thousand nine hundred and eleven and made between the Company of the one part and the lord mayor aldermen and citizens of the city of Cardiff of the other part as set forth in the Third Schedule to this Act is hereby confirmed and made binding upon the parties thereto.

Confirming
agreement
with Cardiff
Corporation
as to Maindy
Bridge.

23. The agreement dated the fourteenth day of June one thousand nine hundred and nine and made between the Company of the one part and the council of the other part as set forth in the Fourth Schedule to this Act is hereby confirmed and made binding upon the parties thereto.

Confirming
agreement
with Ponty-
pridd Coun-
cil as to
Gelliwastad
Bridge &c.

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Confirmation
of agree-
ment relating
to Lascelles
Road Bridge.

24. The agreement dated the eighteenth day of March one thousand nine hundred and twelve and made between the Company of the first part the lord mayor aldermen and citizens of the city of Cardiff of the second part and the Great Western Railway Company and the Cardiff Railway Company of the third part as set forth in the Fifth Schedule to this Act is hereby confirmed and made binding upon the several parties thereto.

Saving for
Postmaster-
General.

25. Nothing in this Act or in any agreement confirmed by this Act shall affect the rights and powers of the Postmaster-General under the Telegraph Acts 1863 to 1911.

Removal of
stranded or
sunk vessels.

26.—(1) Whenever any vessel is sunk stranded or abandoned in or near the Penarth Dock or Harbour or any approach thereto the Company may cause that vessel to be raised or removed or to be blown up or otherwise destroyed so as to clear such dock harbour or approach therefrom.

(2) The Company may cause any such vessel and any vessel raised or removed by any other authority at the Company's expense and the furniture tackle and apparel thereof or any part thereof respectively which shall be raised or saved and also all or any part of the cargo goods chattels and effects which may be raised or saved from any such vessel to be sold in such manner as they think fit (subject to such notice being given of the intended sale as is prescribed by the first proviso to section 530 of the Merchant Shipping Act 1894) and out of the proceeds of sale may reimburse themselves for the expenses incurred by them under this section or in reimbursing any such other authority as aforesaid and also for any expenses incurred by them in marking buoying watching lighting or otherwise controlling the vessel and shall hold the surplus (if any) of the proceeds of sale in trust for the persons entitled thereto:

Provided always that the Company shall before selling any such cargo goods chattels or effects as aforesaid pay all duties which may be payable to His Majesty in respect to the cargo goods chattels or effects to be sold and they may retain the amount of the duties so paid out of the proceeds arising from the sale of such cargo goods chattels or effects.

(3) If the proceeds of sale are insufficient to reimburse the Company for the aforesaid expenses the Company may recover the deficiency or in case of an appeal under subsection (4) of this section such sum as is awarded by the arbitrator to be payable in respect of the deficiency from the person who at the

time of the sinking stranding or abandonment of the vessel A.D. 1912.
 was the registered owner of the vessel or from the executors or
 administrators of such owner as a debt either summarily as a
 civil debt or in any court of competent jurisdiction.

(4) If on demand being made under this provision for pay-
 ment of any deficiency the person on whom the demand is made
 is dissatisfied with the amount demanded he may within fourteen
 days after the receipt of the demand appeal to the Board of
 Trade who shall appoint an arbitrator to determine and award
 whether any and if any what sum is payable in respect of the
 deficiency and the award of the arbitrator appointed by the
 Board of Trade that no sum is payable or as to the sum payable
 as the case may be shall be conclusive and binding on both
 parties The costs of the appeal and the award shall be in the
 absolute discretion of the arbitrator and he shall award and
 order how those costs are to be borne and paid and any costs
 so awarded and ordered to be paid by either party may be
 recovered by the other party in the same manner as the sum
 payable in respect of the deficiency is recoverable under sub-
 section (3) of this section.

(5) The powers given to the Company by subsection (1) of
 this section shall not be exercised if the registered owner of the
 vessel sunk stranded or abandoned shall in the case of a vessel
 sinking or becoming stranded or abandoned on the entrance sill of
 the said dock or harbour immediately or in any other case within
 twenty-four hours after the vessel shall have been stranded or
 sunk take such steps as may in the opinion of the Company's
 dock superintendent be necessary for the raising or removal of
 the vessel and shall thenceforth continuously and diligently and
 to the satisfaction of such dock superintendent prosecute and
 do all such works and things as may in the opinion of such
 dock superintendent be necessary and proper for the raising and
 removal of the vessel as speedily as possible.

(6) The powers conferred by this section on the Company
 shall be in addition to and not in substitution for or derogation
 of any other powers exercisable by them for or with respect to
 the removal of wrecks.

27. Where the Company have purchased or acquired or may Sale &c. of
 purchase or acquire any lands or any interest in any lands under lands over
 or through which the railways of the Company are or may be tunnels.
 carried in tunnel it shall be lawful for the Company to convey

A.D. 1912. or surrender those lands or any portion of those lands (whether such portion be divided horizontally or vertically from the remainder) or any interest in those lands or any portion thereof for such estates for such consideration and upon and subject to such covenants terms and conditions as they may think fit or to let on lease or otherwise dispose of those lands or any such portion thereof or any interest therein for such terms of years and at such rents or for such other consideration and subject to such covenants conditions and stipulations as the Company shall deem expedient.

Power to
lease &c.
lands.

28. And whereas lands have from time to time been purchased or acquired by the Company but such lands are not immediately required for the purposes of the Company and it is expedient that further powers should be conferred upon the Company with respect to such lands Therefore notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any other Act with which that Act is incorporated the Company shall not be required to sell or dispose of any such lands or any lands acquired under the powers of this Act which may not be immediately required for the purposes of the Company but may retain hold or use or may lease or otherwise dispose of the same :

Provided that any lands retained held or leased by the Company under the powers of this section shall so long as the same are used for purposes other than purposes of the undertaking of the Company be deemed to be subject to the operation of any statutory provisions byelaws or regulations for the time being in force within the borough or district in which such lands respectively may be situate as if the same had ceased to form part of the undertaking of the Company.

For the purposes of this section the expression "the Company" means and includes in addition to the Company any joint committee incorporated by Act of Parliament on which the Company may be represented and for the purposes of any land held or enjoyed by the Company jointly with any other company or companies means and includes the Company and such other company or companies.

As to prefer-
ence stock
of Company.

29. The Company may raise by the issue of stock to form part of and rank *pari passu* with the existing Taff Vale Railway preference stock any moneys which they are by any former

Act authorised or empowered to raise by the issue of preference stock. A.D. 1912.

30. The Company may apply to the purposes of this Act or to the general purposes of their undertaking to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by shares or stock or debenture stock or borrowing by virtue of any Acts relating to them and which may not be required for the purposes to which they are by any such Act made specially applicable.

Power to
Company
to apply
corporate
funds to
purposes
of Act.

31. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

Provision as
to general
Railway
Acts.

32. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

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The SCHEDULES referred to the foregoing Act.

FIRST SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PARTS ONLY ARE REQUIRED
TO BE TAKEN BY THE COMPANY.

Nos. on deposited Plans.	Parish.	Description of Property.
FOOTBRIDGE AT GYFEILLON NEAR PONTYPRIDD.		
1	Pontypridd - -	Rough ground slope footpath and retaining wall.
2	ditto - -	Railway and works siding pipes retaining walls and slope telegraph and telephone posts and wires and footpath.
3	ditto - -	Colliery yard sidings footpath outbuildings weighbridge electric light and telephone posts and wires.
4	ditto - -	Weighing machine house.
5	ditto - -	Coal washery siding and footpath.
6	ditto - -	Colliery siding and yard.
7	ditto - -	Chimney stack boiler house steps sheds and colliery yard.
8	ditto - -	Tramroads colliery yard and platform electric light and telephone posts and wires and footpath.
9	ditto - -	Coke ovens tramroads electric light and telephone posts and wires.
10	ditto - -	Boiler pump house.
11	ditto - -	Boilers and works electric standard and cable.
12	ditto - -	Colliery yard and siding.
13	ditto - -	Colliery yard tramroad roadway footpath steps drain manhole electric standard and cable.
ADDITIONAL LANDS AT ABERDARE.		
1	Aberdare - -	Private railway sidings and works waste land footpath bridge gas and water pipes electric light cables telegraph and telephone posts and wires.

SECOND SCHEDULE.

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THIS INDENTURE made the fourth day of April one thousand nine hundred and twelve between the TAFF VALE RAILWAY COMPANY (hereinafter called "the Railway Company") of the first part the GREAT WESTERN COLLIERY COMPANY LIMITED whose registered office is situate at 11 St. Stephen Street in the city and county of Bristol (hereinafter called "the Colliery Company") of the second part HENRY FAIRFIELD GROVER of Fairfield Radyr in the county of Glamorgan solicitor executor and trustee of the late Lewis Wayne Morgan of Trehavod in the county of Glamorgan doctor of medicine deceased (hereinafter called "the landowner") of the third part and the PONTYPRIDD URBAN DISTRICT COUNCIL (hereinafter called "the Council") of the fourth part.

Stamp.

Ten
shillings.

WHEREAS there has existed for many years past a level crossing for foot passengers at Gyfeillon near Pontypridd on the Taff Vale Railway and the colliery siding of the Colliery Company at that place which crossing has been claimed to be a public right of way for foot passengers:

And whereas it has been agreed by the parties hereto in the interests of public safety but without prejudice to the rights of any party that the level crossing shall be closed and a footbridge erected on the site thereof at the joint expense of the Railway Company the Colliery Company and the Council as hereinafter appearing:

And whereas the Colliery Company and the landowner have agreed to provide such land belonging to them as may be necessary for the construction of the said footbridge:

And whereas the parties hereto have agreed on an order being made by the Board of Trade under section 13 of the Regulation of Railways Act 1842 for the closing of the said crossing and the erection of the said footbridge on the site thereof or failing such order that the Railway Company with the concurrence and assistance of the parties hereto of the second third and fourth parts shall apply to quarter sessions or Parliament for an order closing the said footpath and extinguishing the said alleged right of way:

Now it is hereby agreed as follows:—

1. The parties hereto will concur in an application to the Board of Trade or quarter sessions or Parliament for the necessary order to close and extinguish the said level crossing and right of way as

A.D. 1912. shown on the plan attached hereto to the intent that same shall be for ever closed and extinguished and the Railway Company shall with all convenient speed erect on or adjoining the site thereof a steel over-bridge for foot passengers at an estimated cost of nine hundred pounds in the position shown on the plan attached hereto one-third of which cost shall be borne by the Railway Company one-third by the Colliery Company and the remaining one-third by the Council provided that if the cost of the said bridge according to the certificate of the engineer of the Railway Company shall be either more or less the cost thereof shall be adjusted in the same proportion as hereinbefore provided The proportions of the Colliery Company and the Council in the estimated cost of nine hundred pounds shall be paid within one month of the execution of this Agreement.

2. The Railway Company shall maintain the said footbridge in good and substantial state of repair and renew the same when necessary and the cost thereof according to the certificate of the engineer as aforesaid shall be borne as to one moiety thereof by the Railway Company and as to the other moiety by the Colliery Company.

3. The Railway Company and the Colliery Company shall not be under any obligation to light the said footbridge or the approaches thereto on either side and it is expressly agreed by the Council that they will undertake the obligation of laying down the necessary connections and lamps and the lighting and maintaining all such connections and lamps and will indemnify the Colliery Company and the Railway Company from and against all claims in respect thereof Provided that the laying down of such connections and lamps over and on the said bridge shall be carried out to the satisfaction of the engineer of the Railway Company.

4. The Colliery Company and the landowner hereby agree to provide the necessary land belonging to them on which the said bridge or any part thereof shall be constructed and shall not make any charge to the Railway Company or the Council in respect thereof and the Railway Company will grant an easement over their land free of charge.

5. The footway and bridge shall when constructed be and are hereby dedicated to the use of the public as a public footpath.

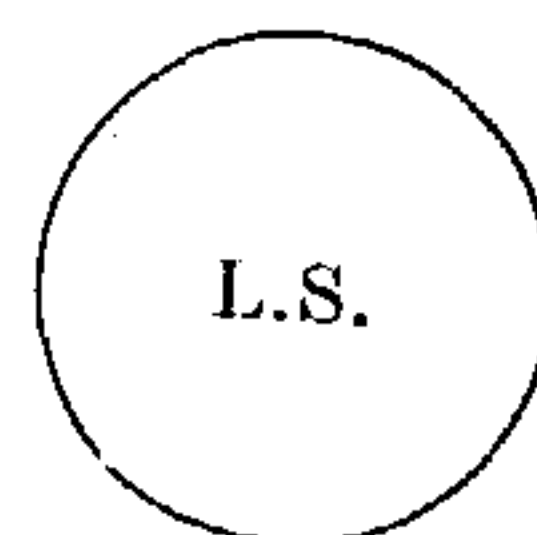
6. For the purpose of identification the situation of the said crossing the position and description of the proposed over-bridge are delineated and described on the plan attached hereto and signed by the parties.

7. The Railway Company the Colliery Company and the Council shall bear their own cost of and incidental to the preparation and execution of this Agreement and any proceedings before the Board of Trade with reference to the said order.

8. The Railway Company the Colliery Company and the Council A.D. 1912.
shall pay the landowner's solicitors charges of fifteen guineas (inclusive)
and also the agents fee of thirty guineas in equal shares.

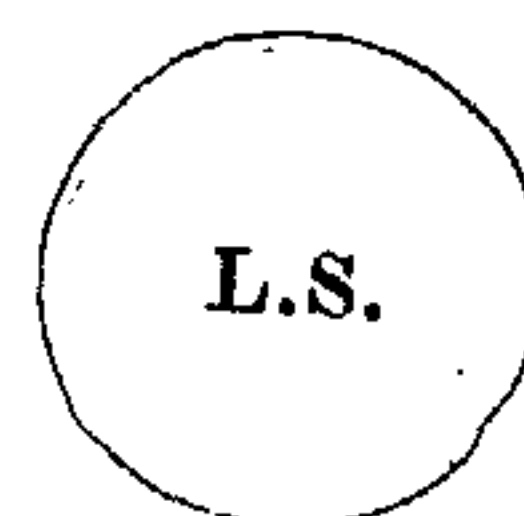
In witness whereof the parties hereto of the first second and fourth
parts have caused their respective common seals to be affixed and the
said Henry Fairfield Grover hath hereunto set his hand and seal the
day and year first before written.

The common seal of the Taff Vale
Railway Company was hereto
affixed in the presence of



(Sd.) EDWD. EDWARDS
Secretary.

The common seal of the Great
Western Colliery Company
Limited was hereto affixed in
the presence of



(Sd.) JAS. McMURTRIE
Director.

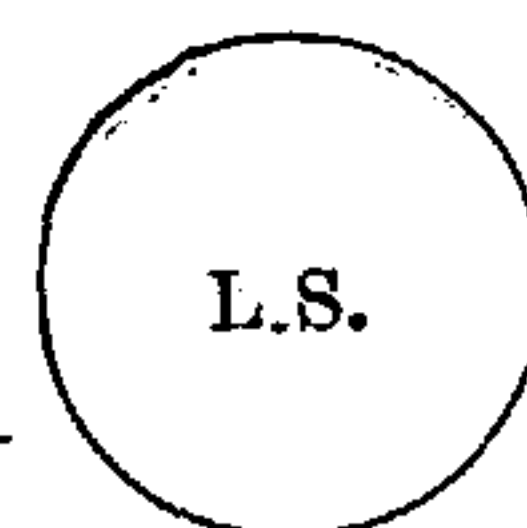
(Sd.) FREDERIC S. SAGE
Secretary.

Signed sealed and delivered by the
said Henry Fairfield Grover in
the presence of

HENRY F. GROVER.

(Sd.) J. COLENZO JONES
Pontypridd
Solicitor.

The common seal of the Pontypridd
Urban District Council was
hereto affixed in the presence of



(Sd.) J. COLENZO JONES
Clerk.

A.D. 1912.

THIRD SCHEDULE.

Stamp.

Three
Pounds seven
shillings and
sixpence.

THIS INDENTURE made the thirtieth day of May one thousand nine hundred and eleven between the TAFF VALE RAILWAY COMPANY (hereinafter called "the Company") of the one part and the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF CARDIFF (hereinafter called "the Corporation") of the other part.

WHEREAS the Company are the owners of the bridge with the approaches thereto in the city of Cardiff carrying the main road from Cardiff to Merthyr over the Company's railway at Maindy and commonly known as the Maindy Bridge and are also the owners of certain lands adjoining the said bridge and approaches indicated on the plan hereunto annexed and thereon coloured pink:

And whereas under the provisions of the Cardiff Corporation Act 1875 the Corporation on the one hand and the Company on the other are authorised from time to time to enter into and carry into effect any agreements with respect to the alteration widening and improving of all or any of the bridges belonging to the Company either by the Corporation or by the Company at the cost of the Corporation:

And whereas by the Public Health Act 1875 the Corporation are empowered to agree with the Company for the maintenance of the roadway and the approaches thereto of any existing or projected bridge over any railways within their district and to maintain such roadway and approaches as parts of public roads maintainable and repairable by the inhabitants at large within their district:

And whereas the Company being about to reconstruct the said bridge have been requested by the Corporation to at the same time widen and improve the said bridge to the intent that the said bridge and approaches shall be reconstructed and renewed of the total width of fifty feet instead of the existing width of thirty feet which the Company have agreed to do upon the terms and conditions hereinafter contained:

Now this Indenture witnesseth and it is hereby covenanted and agreed by and between the Company and the Corporation as hereinafter appears:—

1. The Company will in the renewal of the said Maindy Bridge reconstruct widen and improve the bridge and approaches thereto in the lines and according to the plan and sections which have been agreed between the respective engineers of the Company and the Corporation and which are hereto annexed to the intent that the width of the roadway over such bridge and the approaches to the extent

shown on the said plan shall be increased from thirty-five feet the present width thereof to the width of fifty feet clear between the parapets measured on the square and that the level of the road shall be raised to the extent of eight inches as shown on the longitudinal section appearing on the said plan. A.D. 1912.

2. The whole of the said works of reconstructing and the said bridge shall be carried out generally in accordance with the requirements of the Taff Company's engineer and in so far as the same relate to the construction and raising of the said road over the said bridge and of the approaches thereto as also to the widening and improving of the bridge as shown upon the plan and the strength thereof shall be carried out in consultation with and to the satisfaction of the city engineer for the time being of the Corporation.

3. For the purpose of the widening and improving of the bridge and approaches the Company will do and hereby free of expense to the Corporation and pursuant to the provisions of the Highways Act 1835 and any and every other power thereunto them enabling dedicate to the public for the purposes of a highway all their interest of and in the surface of the land belonging to the Company coloured pink as it will exist after such widening and improvement of the bridge and approaches has been carried out on the said plan and also of the roadway over the said bridge and the approaches thereto but such dedication shall be in all respects subject to the terms of this Indenture.

4. Within forty-two days after the delivery to the city engineer by the Company's engineer of a certificate in writing that the reconstruction widening and improving of the bridge together with the roadway thereon and the approaches thereto in accordance with the terms of this Indenture have been duly completed and carried out and that the then surface of the land coloured pink on the said plan and of the roadway over the said bridge and the approaches thereto have been thrown into and become part of the highway in accordance with the dedication by the Company hereinbefore provided for the Corporation will pay to the Company the sum of two thousand five hundred and thirty pounds being the agreed amount representing the difference between the cost of reconstructing the bridge at its present width and the cost of reconstructing improving and widening the bridge and approaches to the width of fifty feet.

5. The Corporation will further within forty-two days after the date of the said certificate pay to the Company the sum of one hundred and thirty-seven pounds five shillings being the capitalised cost of the maintenance and future renewal of the widened portion of the structure of the bridge over and above thirty-five feet and the statutory obligations of the Company in respect of the maintenance and renewal of the

A.D. 1912. structure of the said bridge shall be and are hereby agreed to apply to the whole width of the bridge as widened up to fifty feet and not only to the existing width of thirty-five feet.

6. The Corporation will forthwith on the completion of the work in accordance with the statutory provisions in that behalf hereinbefore recited adopt and maintain the roadway over the whole of the said bridge as widened and the approaches thereto as maintainable and repairable by the inhabitants at large within their district and will at all times thereafter carry out all such curbling channelling and lighting on the said bridge and approaches as widened as shall be from time to time requisite and necessary and maintain and keep in such a state of repair as to be fit and safe for the ordinary traffic of the neighbourhood and to comply with the Company's statutory obligations the footways and surface of the said widened road and approaches and will at all times indemnify and keep indemnified the Company and its estate and effects from and against all claims charges expenses costs or losses therefor or in relation thereto.

7. Notwithstanding the provisions of this Indenture for the widening of the bridge and approaches and the dedication of the surface to the public for the purposes of a highway as hereinbefore expressed the Company reserve to themselves and the Corporation to the extent that the same may be requisite or necessary grant to the Company full power and authority at all times and from time to time for all purposes of or in connection with the undertaking of the Company between the lines marked E. G. & K. and M. on the said plan to widen their railway either by lengthening at their own expense the said bridge or by tunnelling through and under so much of the land coloured red upon the said plan as may be required for that purpose whether the land used for such purpose shall belong to the Company or to the Corporation. Provided always that in carrying out any such works the Company will take effectual steps for the preservation and support of the road and the traffic thereover and that the levels of the roadway and the approaches thereto shall not be altered by the Company or the surface of the road unreasonably interfered with without the consent of the Corporation or their engineer for the time being and the Company shall at all times save harmless and keep indemnified the Corporation against all claims charges expenses costs or losses arising or that may arise owing to construction by the Company of any works under the powers of this clause.

8. The Company their successors and assigns shall not nor will in the exercise of the powers contained in the last preceding clause or in any other manner howsoever carry out any works which shall damage any electric mains water mains pipes or any other property of the Corporation for the time being upon or over such bridge or by means whereof the Corporation or their servants workmen and others may can

or shall be in any wise prevented or hindered in or about commencing carrying on prosecuting or completing the repair, removal or relaying of any such mains or pipes or any other property of the Corporation for the time being thereon or thereover provided that such repairs removal or relaying by the Corporation or their servants shall in no way impede or obstruct the undertaking of the Company and the traffic on their railway. A.D. 1912.

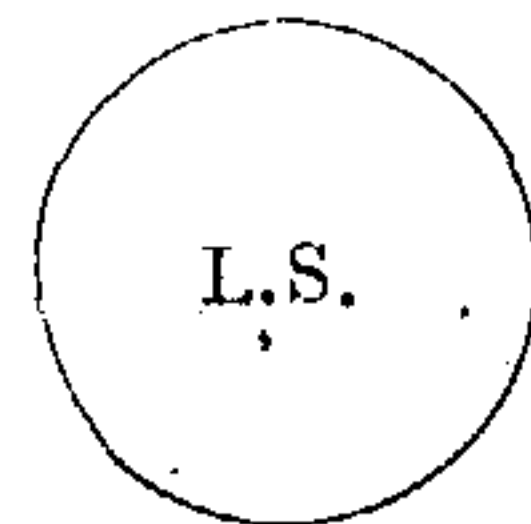
9. The Corporation and the Company respectively shall give to each other all reasonable facilities for carrying out any operations and works and doing all such other acts and things as the Corporation or the Company may respectively reasonably require in and about the premises.

10. This Indenture may at the request either of the Company or the Corporation be scheduled to any Bill which the Company or the Corporation may have in Parliament in some ensuing session.

In witness whereof the Corporation and the Company have hereunto set their respective common seals the day and year first above written.

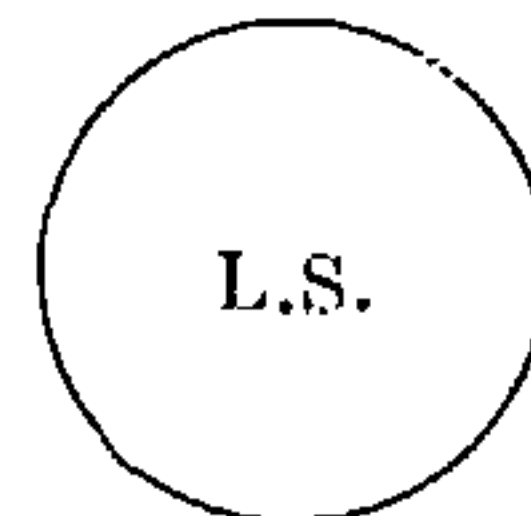
The common seal of the lord mayor
aldermen and citizens of the city
of Cardiff was hereunto affixed
in the presence of

(Sd.) J. L. WHEATLEY
Town Clerk.



The common seal of the Taff Vale
Railway Company was hereunto
affixed in the presence of

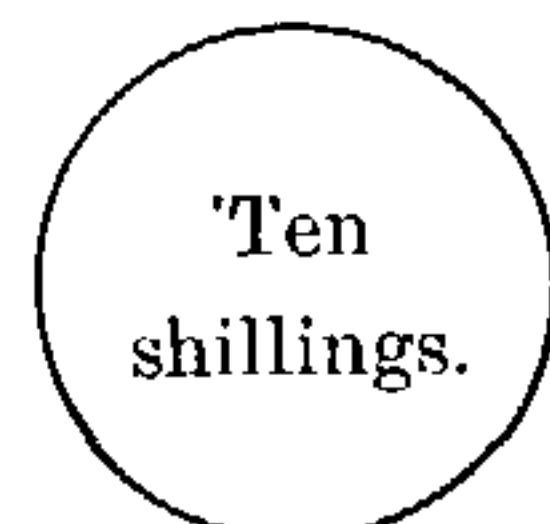
(Sd.) EDWD. EDWARDS
Secretary.



FOURTH SCHEDULE.

AN AGREEMENT made this fourteenth day of June one thousand nine hundred and nine between the TAFF VALE RAILWAY COMPANY (hereinafter called "the Taff Company") of the one part and the URBAN DISTRICT COUNCIL OF PONTYPRIDD (hereinafter called "the Council") of the other part.

Stamp.



WHEREAS the Taff Company are the owners of the pieces of land hereinafter more specifically described abutting on Rickards Street and Union Street and Station Terrace in the town of Pontypridd and at Hopkinstown near to Pontypridd and are also the owners of the

A.D. 1912. bridge passing over their railway known as the Gelliwastad Bridge at Pontypridd:

And whereas negotiations have taken place between the Taff Company and the Council for the carrying out of certain public improvements in the interests of the public and the locality of the district:

And whereas in order to enable such improvements to be carried out the terms and conditions have been arranged between the Taff Company and the Council as hereinafter appears:

Now it is hereby agreed as follows:—

AS TO PROPERTY IN RICKARDS STREET AND UNION STREET.

1. The Taff Company hereby grants to the Council their officers servants and contractors with horses carts vehicles and all necessary plant and appliances full and free liberty at all times without any annual or other payment to enter upon and use all those pieces or parcels of land on the northern side of Union Street and Rickards Street aforesaid having an area of 509 square yards or thereabouts which said pieces of land are more particularly delineated and described on the plan hereto annexed and thereon coloured red for the purpose of constructing maintaining repairing and renewing on such pieces of land the footway or pavement hereinafter referred to as a footway or pavement for the use of the public.

2. The Taff Company shall with all reasonable expedition after the execution of this Agreement remove any hoarding or obstruction which shall be upon the said pieces of land.

3. The Council shall with all reasonable expedition after the execution of this Agreement proceed to construct on the said pieces of land a footway or pavement of at least six feet in width where the width of the said pieces of land so permits throughout the whole length of the said pieces of land according to plans approved by the respective engineers to the Taff Company and the Council which said footpath or pavement the Council will except as aforesaid use or permit to be used for pedestrian traffic only.

4. The Council will with all reasonable expedition after the execution of this Agreement proceed to erect and maintain upon the Taff Company's retaining wall bounding the said pieces of land on the northern side and between the said streets and the Taff Company's railway a parapet railing or fence to a height of at least six feet above the level of the footpath or pavement hereinbefore agreed to be constructed and such parapet railing or fence shall be constructed by the Council according to plans and elevations to be agreed by the respective

engineers to the Taff Company and the Council or failing agreement settled by arbitration and shall thereafter at all times be maintained by the Council. A.D. 1912.

5. The Taff Company will permit the Council to lay gas and water pipes and electric mains and erect lamps on the said pieces of land in such manner as shall be approved by the respective engineers aforesaid.

6. The Council will maintain at all times a free passage for foot passengers from Rickards Street to the steps leading to the subway underneath the Taff Company's railway known as the Rolling Mill Subway.

7. The Taff Company shall be at liberty at all times upon giving reasonable notice to the Council or the Council's surveyor of their intention so to do to enter upon the said pieces of land by themselves their workmen servants or others with carts horses or appliances for the purpose of opening out repairing or renewing or examining the condition of the said retaining wall and carrying out any necessary works in connection therewith. Provided that the Taff Company shall restore the surface of the said footpath or pavement.

AS TO PROPERTY IN STATION TERRACE.

8. The Taff Company agree to sell and the Council agree to purchase at the price of thirty pounds all that triangular piece or parcel of land on the northern side of Station Terrace in the town of Pontypridd comprising an area of 123 square yards or thereabouts and the position and extent whereof are more particularly delineated and described on the plan attached hereto and thereon coloured blue.

9. Vacant possession of the last-mentioned piece of land shall be given by the Taff Company to the Council on completion of the purchase and payment of the purchase money as hereinafter described subject to the tenancies of any company or persons for bill posting purposes now existing and which the Taff Company undertake to give notice to terminate on the execution of this Agreement.

AS TO PROPERTY AT HOPKINSTOWN.

10. The Taff Company agree to sell and the Council agree to purchase at the price of thirty pounds all that triangular piece or parcel of land comprising about five poles or thereabouts situate and being at the juncture of Rhondda Road and Jenkin Street at Hopkinstown near Pontypridd and which said piece or parcel of land is more particularly delineated and described on the plan hereto annexed and thereon coloured green.

A.D. 1912.

11. With regard to the last-mentioned piece of land at Hopkinstown the Council undertake to re-erect the Taff Company's fence upon the northern boundary thereof either by continuing the neighbouring boundary wall or in such other manner as may be agreed between the respective engineers to the Council and the Company or failing agreement settled by arbitration.

12. With regard to the purchase of property at Station Terrace and Hopkinstown the following provisions shall apply viz.:—

- (A) The Taff Company being in possession of the property the Council will accept the Taff Company's title thereto:
- (B) The general conditions of sale by private treaty in so far as same are applicable contained in the general conditions of the Incorporated Law Society of Cardiff and district shall be deemed to be incorporated therein:
- (C) The purchases shall be completed at the office of Messieurs Ingledew and Sons of 57 Mount Stewart Square Cardiff the Taff Company's solicitors on or before the first day of September 1909:
- (D) Each side shall pay their own costs of this Agreement and of the conveyances and the Council will on request of the Taff Company execute duplicate conveyances of the properties agreed to be sold at Station Terrace and Hopkinstown.

AS TO GELLIWASTAD BRIDGE.

13. The Taff Company agree to grant to the Council the right to widen the Taff Company's existing bridge carrying the accommodation road over their railway at Gelliwastad and commonly known as the Gelliwastad Bridge and to grant to the Council every reasonable facility in that behalf to the intent that the Council shall widen such bridge from its existing width to a width of thirty-six feet between the parapets subject to the following terms and conditions:—

- (A) The work of widening shall comprise not only the widening of the bridge but the widening of the approach roads at each end thereof in so far as such approach roads are upon the Taff Company's property as shown on the detailed bridge drawing:
- (B) The work of widening shall if the Taff Company so require be carried out by the Taff Company for the Council according to plans specifications and elevations previously submitted to and agreed by the respective engineers of the Council and the Taff Company or failing agreement settled by arbitration:

(c) The bridge to be erected shall be a steel girder bridge of such a character as shall be reasonably approved by the engineer of the Taff Company and the work shall be carried out in all respects under the supervision and to the satisfaction of the engineer of the Company who shall make such arrangements as he may deem requisite for the safety of the railway and the carrying on of the traffic thereover such arrangements shall include such temporary closing of the bridge as the engineers of the Council and the Taff Company may agree to be necessary : A.D. 1912.

(d) The actual cost of carrying out the work according to the certificate of the engineer of the Taff Company shall be paid on application by the Council to the Company.

14. The Taff Company agree on and after the completion of the widening of the said bridge to dedicate to the use of the public subject as hereinafter expressed the road along and over the said bridge so widened and so much of the approach roads as shall be upon the Taff Company's property as shown on the plan attached hereto.

15. Notwithstanding the dedication to the public of the use of the said road over the said bridge and approach roads on the Taff Company's property, hereinbefore contained such dedication shall comprise the right of passage by the public with or without horses carts carriages or other vehicles thereover and shall not include the right except with the permission of the Taff Company to carry water or gas pipes or electric or other mains thereover but such permission shall not be unreasonably withheld.

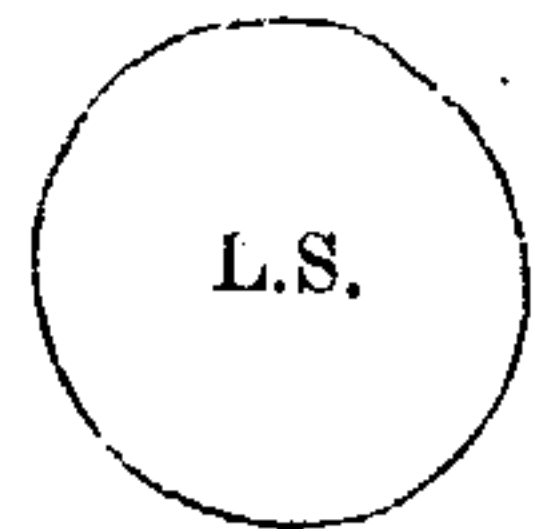
16. The Taff Company also reserve to themselves full right power and privilege at all times hereafter to carry out in a reasonable manner such works affecting the said bridge or approach roads as may in the opinion of their engineer from time to time be found necessary in order to widen their railway or to pass additional lines of railway thereunder or to lengthen the said bridge or for any other purpose which the Taff Company may from time to time consider to be requisite or convenient for the special or general purposes of their undertaking Provided that the Taff Company shall not do anything to prevent or obstruct except temporarily and to such extent as is reasonably necessary the free passage of the public along and over the said bridge and approach roads.

17. This Agreement shall on the application of either party be scheduled to any subsequent Bill in Parliament either of the Taff Company or the Council and in such Bill there shall be inserted such clauses as may be required to confer on the Taff Company or the Council legal authority to carry out this Agreement.

A.D. 1912. As witness the common seals of the parties hereto.

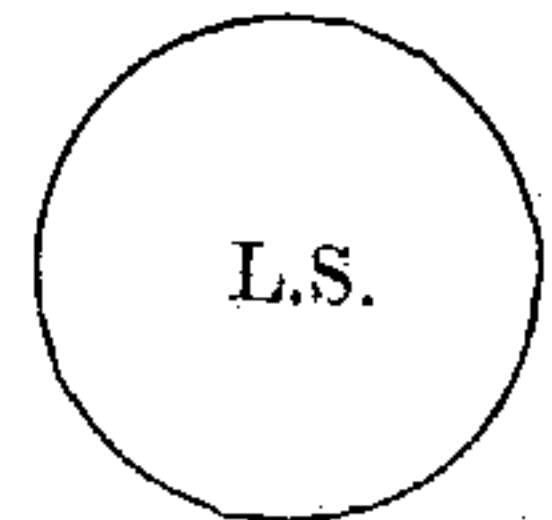
The common seal of the Pontypridd
Urban District Council was
hereunto affixed in the presence
of

(Sd.) J. COLENSO JONES
Clerk to the Council.



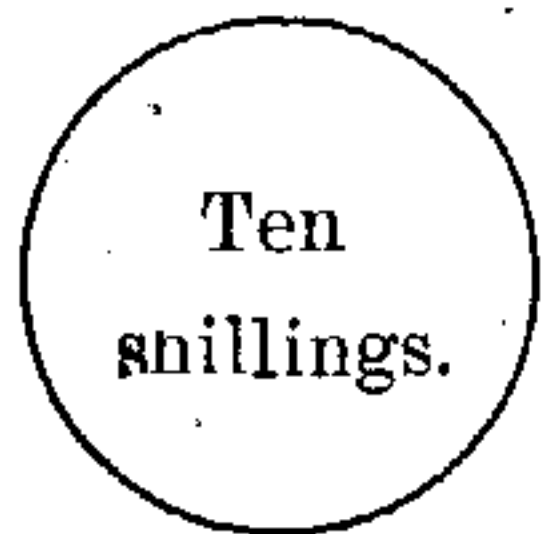
The common seal of the Taff Vale
Railway Company was hereunto
affixed in the presence of

(Sd.) EDWD. EDWARDS
Secretary.



FIFTH SCHEDULE.

Stamp.



THIS INDENTURE made the eighteenth day of March one thousand nine hundred and twelve between the TAFF VALE RAILWAY COMPANY (hereinafter called "the Taff Company") of the first part the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF CARDIFF (hereinafter called "the Corporation") of the second part and the GREAT WESTERN RAILWAY COMPANY (hereinafter called "the Great Western Company") and the CARDIFF RAILWAY COMPANY (hereinafter called "the Cardiff Company") of the third part.

WHEREAS by section 4 of the Great Western Railway (Additional Powers) Act 1896 (hereinafter referred to as the said Act of 1896) the Great Western Company were authorised to make and maintain (amongst other works) a railway (on the deposited plans relating thereto referred to as Railway No. 1) 1 mile 5 furlongs and 270 chains in length to be wholly situate in the parish of Roath in the county of Glamorgan commencing by a junction with the South Wales Railway of the Great Western Company and terminating by a junction with the railway of the Bute Docks Company:

And whereas by subsection 24 of section 6 of the said Act of 1896 it is (among other things) enacted for the protection of the Corporation that the Great Western Company shall construct and maintain a widening of the existing bridge by which Lascelles Road passes under the Taff Company's Roath Branch Railway and of the approach thereto the road under such bridge to be of a clear width

throughout of not less than fifty feet between the abutments (such abutments to be faced with white glazed bricks) measured at right angles to the centre line of the intended road and the bridge to have a clear headway throughout of not less than sixteen feet above the surface of the road and that the Great Western Company shall construct and maintain on each side of the said bridge parapets or closed screens not less than seven feet in height above the level of the rails on such bridge and the said bridge shall be made and maintained so as to prevent dripping of water therefrom at any time on any part of the roadway or footway thereunder and that the cost of constructing and maintaining the said widening shall be borne by the Corporation but the Great Western Company shall contribute and pay to the Corporation towards the cost of the construction of such widening a sum equal to the difference between the cost of a bridge of a width of fifty feet and the cost of a bridge of a width of forty feet:

A.D. 1912.

And whereas by subsection 4 of section 7 of the said Act of 1896 it is (amongst other things) enacted for the protection of the Taff Company that the cost of maintaining the said bridge as so widened by the Great Western Company shall (as between the Taff Company and the Great Western Company) be borne by the Great Western Company but the Taff Company shall contribute and pay to the Great Western Company towards such cost the amount which it would have cost them to maintain the existing bridge:

And whereas by the Cardiff Railway Act 1897 the name of the Bute Docks Company was changed to that of the Cardiff Railway Company:

And whereas by section 22 of the Cardiff Railway Act 1899 provision is made for the construction by the Cardiff Company and the Great Western Company jointly of certain portions of Railway No. 1 hereinbefore referred to including the widening of the said bridge and of the approach thereto And by section 23 of the same Act it is (among other things) enacted that all the provisions of sections 6 and 7 of the said Act of 1896 so far as they relate to any works referred to in those sections affecting the Taff Company which shall under the provisions of the Act now in recital be constructed by the Cardiff Company and the Great Western Company jointly shall apply so far as applicable to the Cardiff Company and the Great Western Company jointly:

And whereas the said bridge has accordingly been widened and the other works in connection therewith have been constructed by the Cardiff Company and the Great Western Company jointly in compliance in every respect with the provisions of the said Act of 1896

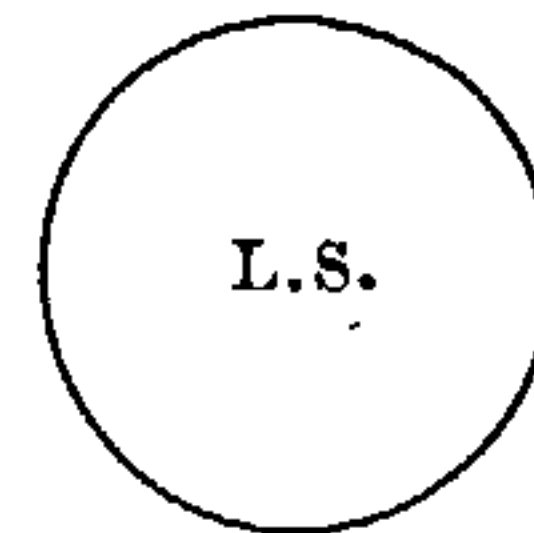
A.D. 1912. And it has been agreed by and between the parties hereto that for the considerations hereinafter appearing the Taff Company shall take upon themselves the obligation to maintain the said bridge as so widened with the parapets or closed screens on each side thereof and the obligation to prevent the dripping of water therefrom at any time on any part of the roadway or footway thereunder and shall relieve the Great Western Company and the Cardiff Company and the Corporation respectively of all liability with regard thereto:

Now this indenture witnesseth that in pursuance of the said Agreement and in consideration of the sum of one hundred and fifty pounds seventeen shillings and sixpence now paid to the Taff Company by the Corporation with the concurrence of the Great Western Company and of the Cardiff Company (the receipt whereof the Taff Company do hereby acknowledge) They the Taff Company do hereby take upon themselves and relieve the Great Western Company and the Cardiff Company from all liability or obligation to maintain the said bridge as so widened and the Taff Company the Great Western Company and the Cardiff Company do hereby release and discharge the Corporation from all liability or obligation present or future to contribute towards the maintenance of the widened portion of the said bridge:

And this indenture also witnesseth that in further pursuance of the said Agreement and in consideration of the sum of eighty pounds now paid to the Taff Company by the Great Western Company and the Cardiff Company (the receipt whereof the Taff Company do hereby acknowledge) They the Taff Company do hereby take upon themselves and relieve the Great Western Company and the Cardiff Company for all liability or obligation under subsection 24 of section 6 of the said Act of 1896 with regard to the maintenance of parapets or closed screens on each side of the said bridge and the prevention of the dripping of water from such bridge And they the Taff Company do hereby covenant and agree on behalf of themselves their successors and assigns that they will at all times hereafter well and sufficiently maintain at their own cost to the reasonable satisfaction of the city engineer for the time being of the Corporation the said bridge as so widened together with the parapets or closed screens on each side thereof and will at all times hereafter prevent the dripping of water therefrom on any part of the roadway or footway thereunder and will effectually indemnify the Great Western Company and the Cardiff Company and the Corporation respectively from and against any claims damages costs charges and expenses whatsoever in respect thereof And it is hereby agreed between the respective parties hereto that this indenture may be scheduled to any Bill hereafter presented by any one of the said covenanting parties to Parliament and be thereby confirmed and is made subject to such alterations as Parliament may think fit to make therein.

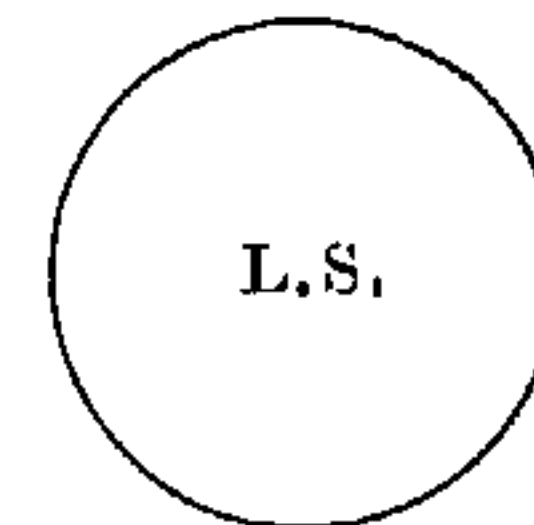
In witness whereof the parties have hereunto caused their common A.D. 1912.
seals to be affixed the day and year first before written.

The common seal of the Taff Vale
Railway Company was hereunto
affixed in the presence of



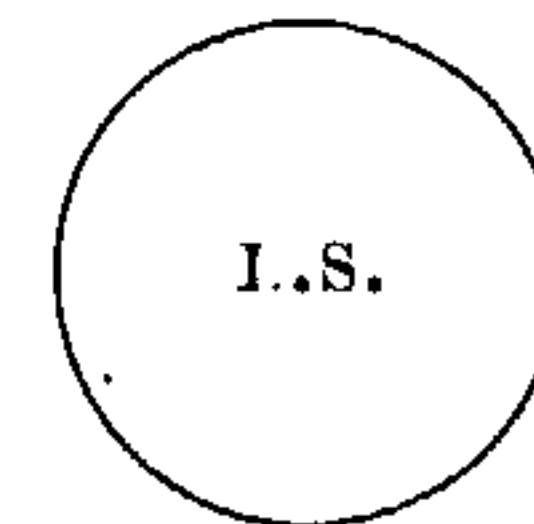
EDWD. EDWARDS
Secretary.

The common seal of the lord mayor
aldermen and citizens of the City
of Cardiff was hereunto affixed in
the presence of



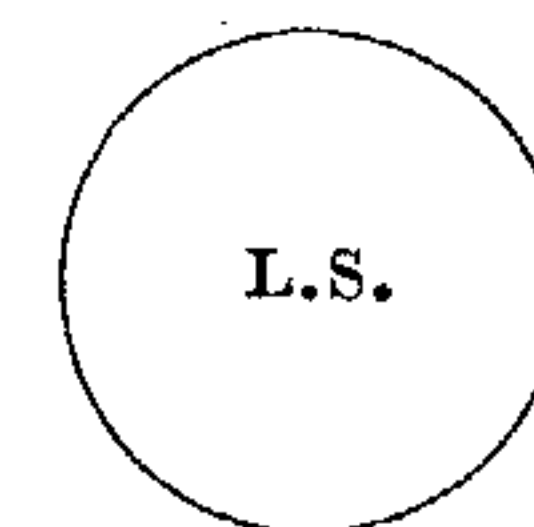
J. L. WHEATLEY
Town Clerk.

The common seal of the Great Western
Railway Company was hereunto
affixed in the presence of



A. E. BOLTER
Secretary.

The common seal of the Cardiff
Railway Company was hereunto
affixed in the presence of



FRED. I. PITMAN
Director.

HENRY A. ROBERTS
Secretary.

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